

FEDERAL MARITIME COMMISSION

Docket No. 23-13

USL AUTO EXPORTING INC.,

COMPLAINANT,

v.

EASY SHIPPING CORPORATION,

RESPONDENT.

**COMPLAINANT’S MOTION FOR LEAVE TO ISSUE SUBPOENA TO CMA
CGM**

Comes now the Complainant, USL Auto Exporting Inc., by and through undersigned Vice President, and hereby moves the Federal Maritime Commission for leave to issue a subpoena to CMA CGM to obtain records related to the shipment that was returned from Libya, as well as all other shipments returned from Libya through Respondent. In support of this motion, Complainant states as follows:

I. INTRODUCTION

Complainant seeks critical new evidence regarding the shipment in dispute, specifically records from CMA CGM regarding cargo that was returned from Libya. This evidence is material to the case, as it will confirm the handling, routing, and status of the returned shipment and provide direct refutation of certain claims made by Respondent.¹

Additionally, **Complainant has received direct evidence from multiple clients of Respondent, confirming that they have experienced the same issue—where Respondent arranged shipments that were later returned from Libya under questionable circumstances.** These clients have provided supporting information that suggests **a pattern of misconduct by Respondent**, including improperly handled shipments and failure to properly coordinate logistics, resulting in returned cargo and financial losses.

Pursuant to 46 C.F.R. § 502.131, the Commission has the authority to issue subpoenas for testimony, documents, and records relevant to ongoing proceedings. Complainant respectfully requests that the Commission grant leave to issue a subpoena compelling CMA CGM to produce records related to all shipments returned from Libya involving Respondent.²

II. LEGAL BASIS FOR THE REQUEST

1. Authority to Issue Subpoena

Under 46 C.F.R. § 502.131(a), a party may request the issuance of a subpoena for records relevant to the dispute at hand. The regulation states:

“Any party desiring to procure the attendance and testimony of a witness, the production of documents, or the production of electronically stored information may apply for the issuance of a subpoena.”

2. Relevance of the Evidence

- The requested records will confirm the actual status of the shipment returned from Libya and clarify whether Respondent’s claims regarding the shipment’s return were accurate.

¹ . **46 U.S.C. § 41303(a)(1)**, which states: "In an investigation under this part, the Federal Maritime Commission may subpoena witnesses and evidence."

² . In *Federal Maritime Commission v. Caragher*, 243 F. Supp. 136, 138 (S.D.N.Y. 1965), the court recognized the FMC’s authority to issue subpoenas in connection with its investigations, stating that "the Federal Maritime Commission has the statutory power to issue subpoenas requiring the production of relevant documents and the attendance of witnesses in matters within its jurisdiction." The court further enforced the subpoenas duces tecum issued by the FMC, affirming that "the Commission’s power to compel the production of evidence is essential to the fulfillment of its regulatory and investigative functions."

- The subpoena will also provide evidence of a broader pattern of Respondent's misconduct, as Complainant has been informed by other customers that their shipments were also improperly returned.
 - This information is critical for determining liability and ensuring a full and fair adjudication of the dispute.
 - Without these records, Complainant will be unfairly prejudiced, as Respondent has refused to provide this information.
3. **Good Cause Exists to Grant the Subpoena**
- The requested evidence is uniquely in the possession of CMA CGM, and Complainant has no alternative means of obtaining it.
 - The subpoena is narrowly tailored to seek only records relevant to this dispute and related shipments, ensuring that it is not overly broad or unduly burdensome.

III. RELIEF REQUESTED

For the foregoing reasons, Complainant respectfully requests that the Federal Maritime Commission:

1. Grant this Motion for Leave to issue a subpoena to CMA CGM;
2. Authorize the issuance of a subpoena compelling CMA CGM to provide all records related to shipments returned from Libya involving Respondent, including:
 - Booking records, bills of lading, and waybills related to the shipment at issue and all other returned shipments;
 - Tracking and movement data for all shipments returned from Libya involving Respondent;
 - Communications or correspondence between CMA CGM and Respondent regarding returned shipments from Libya;
3. Grant such further relief as the Commission deems just and appropriate.

IV. CONCLUSION

The requested records are essential to the resolution of this dispute and will provide material evidence regarding the status of the returned shipment, as well as Respondent's pattern of conduct affecting other customers. Complainant has shown good cause for the issuance of a subpoena under 46 C.F.R. § 502.131, and Respondent will not be prejudiced by the disclosure of this information.

Accordingly, Complainant respectfully requests that the Commission grant this motion and allow the issuance of a subpoena to CMA CGM.

DATED: January 30, 2025

Respectfully submitted,

USL AUTO EXPORTING INC.,
By: /s/ ANIS HOUSSEIN
ANIS HOUSSEIN
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Vice President for COMPLAINANT
USL AUTO EXPORTING INC.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on the 30th day of January 2025, a true and correct copy of the foregoing **COMPLAINANT'S MOTION FOR LEAVE TO ISSUE SUBPOENA TO CMA CGM** was served via electronic mail on:

EASY SHIPPING CORPORATION
(fracati@rafatilegal.com)

Anis Houssein

Anis Houssein

Vice President for COMPLAINANT
USL AUTO EXPORTING INC.,